

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of
CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

ORDER NO. 9: GRANTING LEAVE FOR DEPOSITIONS OUT OF TIME
(June 1, 2026)

Respondents move for leave to depose two of complainant's corporate witnesses, Mr. Dong Hyung Kim and Mr. Dong Hyun Lee, on June 1 and 2, 2026, three and four days after the close of fact discovery. Motion Docket No. 1478-006 (EDIS Doc. ID 883684) and *see* Order No. 8 (amended procedural schedule) at 2 (EDIS Doc. ID 881268). According to respondents, "due to scheduling conflicts beyond the parties' control," these are the earliest dates that the respective witnesses can be available for deposition. Mot. at 1. Respondents also assert that the witnesses' depositions "will serve the Commission's interest of compiling as full an evidentiary record as possible" and that the "request does not implicate any procedural schedule deadlines other than the close of fact discovery" and "will not impose any prejudice on any party." *Id.* at 2. Respondents represent that complainant does not oppose. *Id.* at 1 and 2.

The Ground Rules require that discovery after the fact discovery deadline "must be approved in advance by the Administrative Law Judge following a written motion demonstrating good cause." Order No. 2 (Ground Rules) at G.R. 6.4.5 (EDIS Doc. ID 869198). Lacking opposition and for good cause shown, Motion No. 1478-006 is GRANTED.

SO ORDERED.


Doris Johnson Hines
Administrative Law Judge